

CV-21-005754 GAVERT, JAMES vs CF MODESTO LLC – a) Defendant Andreh Saralou M.D.'s Demurrer to Plaintiffs' Second Amended Complaint – SUSTAINED, with leave to amend; b) Defendant Andreh Saralou M.D.'s Motion to Strike Portions of Plaintiffs' Second Amended Complaint – MOOT; c) Defendant The Estate of Michael Brodie's Motion to Strike Portions of Plaintiffs' Second Amended Complaint – CONTINUED, on the Court's own motion to October 7, 2026, at 8:30 am in Department 22 of this Court.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: a) SUSTAINED, with leave to amend; A cause of action for Elder Abuse must allege facts establishing that the defendant had responsibility for meeting the basic needs of the plaintiff, such as nutrition, hydration, hygiene or medical care; knew of conditions that made the plaintiff unable to provide for her basic needs; and denied or withheld goods or services necessary to meet the basic needs, either with knowledge that injury was substantially certain to befall the plaintiff (oppression, fraud, malice) or with conscious disregard of the high probability of such injury (recklessness). (Carter v. Prime Healthcare (2011) 198 Cal.App.4th 396). Statutorily, under the Elder Abuse Act and Medical Injury Compensation Reform Act (MICRA), as well as in common parlance, the function of a health care provider is distinct from that of an elder custodian, and the fact that some health care institutions, such as nursing homes, perform custodial functions and provide professional medical care does not mean that the two functions are the same. (Holland v. Silverscreen Healthcare, Inc. (2025) 18 Cal.5th 364). The Act requires a defendant to have had significant responsibility for attending to one or more of those basic needs of the elder or dependent adult that an able-bodied and fully competent adult would ordinarily be capable of managing without assistance, including food, clothing shelter, hygiene and hydration. (Winn v. Pioneer Medical Group, Inc., (2016) 63 Cal.4th 148). Defendant treated decedent as an in-patient wound care physician specialist, and a physician does not automatically assume the requisite caretaking or custodial relationship for a claim of neglect under the Act simply because the elderly patient happens to reside in a skilled nursing facility and the physician provides services to patients in that facility. (Frankland v. Etehad (2025) 113 Cal.App.5th 503). The Court notes a distinction may exist between at home wound care and in-patient wound care. (Oroville Hospital v. Superior Court (2022) 74 Cal.App.5th 382). However, the Second Amended Complaint fails to factually support its allegations that Defendant acted as more than a wound care specialist in this instance. Therefore, regarding Plaintiffs' Fourth Cause of Action for Violation of the Elder Abuse Act, the Court finds the allegations in the Second Amended Complaint insufficient at the pleading stage to establish a robust custodial or caretaking relationship between decedent James Gavert and Defendant that would support an elder abuse cause of action. (Frankland v. Etehad, supra). Defendant's demurrer is accordingly sustained with leave to amend. (Code of Civil Procedure §§ 430.10 and 430.30 Plaintiff shall file an Amended Complaint within ten (10) of service of the Court's ruling amplifying factual allegations of Defendant's direct, daily involvement and responsibility for basic needs beyond the issuance of wound care orders or professional negligence. b) MOOT. In light of the Court's ruling regarding Plaintiff's companion demurrer, this motion is rendered MOOT. c) CONTINUED, on the Court's own motion to October 7, 2026, at 8:30 am in Department 22 of this Court.

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a) SUSTAINED, with leave to amend;

A cause of action for Elder Abuse must allege facts establishing that the defendant had responsibility for meeting the basic needs of the plaintiff, such as nutrition, hydration, hygiene or medical care; knew of conditions that made the plaintiff unable to provide for her basic needs; and denied or withheld goods or services necessary to meet the basic needs, either with knowledge that injury was substantially certain to befall the plaintiff (oppression, fraud, malice) or with conscious disregard of the high probability of such injury (recklessness). (*Carter v. Prime Healthcare* (2011) 198 Cal.App.4th 396).

Statutorily, under the Elder Abuse Act and Medical Injury Compensation Reform Act (MICRA), as well as in common parlance, the function of a health care provider is distinct from that of an elder custodian, and the fact that some health care institutions, such as nursing homes, perform custodial functions and provide professional medical care does not mean that the two functions are the same. (*Holland v. Silverscreen Healthcare, Inc.* (2025) 18 Cal.5th 364). The Act requires a defendant to have had significant responsibility for attending to one or more of those basic needs of the elder or dependent adult that an able-bodied and fully competent adult would ordinarily be capable of managing without assistance, including food, clothing shelter, hygiene and hydration. (*Winn v. Pioneer Medical Group, Inc.*, (2016) 63 Cal.4th 148).

Defendant treated decedent as an in-patient wound care physician specialist, and a physician does not automatically assume the requisite caretaking or custodial relationship for a claim of neglect under the Act simply because the elderly patient happens to reside in a skilled nursing facility and the physician provides services to patients in that facility. (*Frankland v. Etehad* (2025) 113 Cal.App.5th 503).

The Court notes a distinction may exist between at home wound care and in-patient wound care. (*Oroville Hospital v. Superior Court* (2022) 74 Cal.App.5th 382). However, the Second Amended Complaint fails to factually support its allegations that Defendant acted as more than a wound care specialist in this instance.

Therefore, regarding Plaintiffs' Fourth Cause of Action for Violation of the Elder Abuse Act, the Court finds the allegations in the Second Amended Complaint insufficient at the pleading stage to establish a robust custodial or caretaking relationship between decedent James Gavert and Defendant that would support an elder abuse cause of action. (*Frankland v. Etehad*, *supra*).

Defendant's demurrer is accordingly sustained with leave to amend. (Code of Civil Procedure §§ 430.10 and 430.30)

Plaintiff shall file an Amended Complaint within ten (10) of service of the Court's ruling amplifying factual allegations of Defendant's direct, daily involvement and responsibility for basic needs beyond the issuance of wound care orders or professional negligence.

b) MOOT.

In light of the Court's ruling regarding Plaintiff's companion demurrer, this motion is rendered MOOT.

c) CONTINUED, on the Court's own motion to October 7, 2026, at 8:30 am in Department 22 of this Court.